

Defendants contend “there is no factual dispute that defendants did separately pay at least minimum wage for all hours worked, including rest breaks & non-productive time.” Defendants rely on a recent appellate decision, from the Second Appellate District: *Mora v. C.E. Enterprises, Inc.* (2025) 340 Cal.Rptr.3d 368.

Plaintiff responds that the decision in *Mora* does not control here. In support of their supplemental briefing, they request judicial notice of the trial court’s opinion that was reviewed and affirmed in *Mora*. There, the trial court specifically noted in its Statement of Decision that, despite judgment in favor of defendants, “[n]othing in this decision [...] is intended to be a finding on whether or not the [defendant] payplan is structurally illegal, or otherwise violative of the Labor Code provisions regarding the payment of legally required wages.” (Request for Judicial Notice, Ex. B, 4:10-12.) The appellate court proceeded to review the trial court’s judgment with substantial commentary about the standard of review and whether appellant plaintiffs had sufficiently met their evidentiary burden in the trial court.

Accordingly, even if parties were able to show identical issues in this case as in *Mora*, that opinion does not control based on comments by both the trial court and the appellate court. (See, e.g., *Mora, supra*, 116 Cal.App.5th at 87 [declining to consider new arguments made in reply brief, noting on appeal, the trial court is presumed to have ruled correctly, and noting “appellants have failed to provide an adequate record for us to review their contentions regarding their PAGA claim”].) Further, there are several disputes of fact that appear to be material to these issues. (See SSUMF, Fact Nos. 11-17, and plaintiff’s response.)

At a minimum, plaintiff submits evidence (to which defendants do not object) that “Defendants’ compensation system for workers is based on the number of ‘pieces’ of work completed, and as such should be viewed as a piece-rate system of pay. Compensation is never determined by the ‘base hourly rate’ multiplied by ‘straight-time hours’ plus some ‘productivity bonus,’ as would be the case in a payroll system based on an hourly wage and the number of clocked hours worked.” (Declaration of David Fairris, ¶4.) This is sufficient to create a triable dispute of fact.

Defendants’ request for summary adjudication on issues 8 and 9 is denied.

17. 9:00 AM CASE NUMBER: MSC21-02493

CASE NAME: KUAR VS. MAHARAJ

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Denied as moot based on cross-complainants' July 2, 2026 voluntary dismissal without prejudice of cross-complaint against the moving party/cross-defendant Suman Behari.

18. 9:00 AM CASE NUMBER: N23-2314

CASE NAME: STEVEN SMITH VS. AURIN CANSON

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DAVID HERMELIN**

FILED BY: CANSON, AURIN M.K.

TENTATIVE RULING: